

Our ref: Marsden Park Data Centre (SSD-70889211)

Mr Gannon Cuneo  
Associate Director  
Mecone Group Pty Ltd  
Level 15, 6 Hassall Street  
Parramatta NSW 2150

11 June 2024

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**Subject: Planning Secretary's Environmental Assessment Requirements**

Dear Mr Cuneo

Please find attached a copy of the Planning Secretary's Environmental Assessment Requirements (SEARs) for the preparation of an Environmental Impact Statement (EIS) to accompany the State significant development application (DA) for the proposed data centre at 105 and 113 Hollinsworth Road, Marsden Park (SSD-70889211).

The SEARs have been prepared in consultation with relevant public authorities, based on the information you have provided. A copy of the advice from the public authorities is attached for your information. Please note, at the time of writing the Department is still awaiting advice from Sydney Water. Any advice received will be forwarded to you separately and considered to form part of the SEARs.

Please contact the Department of Planning, Housing and Infrastructure (the Department) as soon as possible if your project changes. If the changes are significant, the SEARs may need to be re-issued. The Department may also need to consult with public authorities in accordance with Part 8 of the Environmental Planning and Assessment Regulation 2021 (EP&A Regulation).

**Your SEARs will expire two years from the date of issue** (or the date they were last modified) unless the Planning Secretary has granted an extension. If you would like to seek an extension, you should contact the Department at least three months prior to the expiry date.

If your application is not submitted within two years (or by the agreed extension date), you will need to make a new application for SEARs to progress your project.

### Preparing your EIS

Your EIS must be prepared having regard to the Department's *State Significant Development Guidelines* – including the *Preparing an Environmental Impact Statement Guideline*. All relevant guides

for State significant projects that are referenced in the SEARs are available at [www.planning.nsw.gov.au/Policy-and-Legislation/Planning-reforms/Rapid-Assessment-Framework](http://www.planning.nsw.gov.au/Policy-and-Legislation/Planning-reforms/Rapid-Assessment-Framework).

During the preparation of your EIS, you are required to consult with various parties, including the Department and relevant agencies, in accordance with *the Undertaking Engagement Guidelines for State Significant Projects*. For more information, please visit the [Prepare EIS page](#) on the NSW planning portal.

Agency contact details can be found at <https://www.planningportal.nsw.gov.au/major-projects/assessment/guide-agency-directory>.

You will need a Registered Environmental Assessment Practitioner (REAP) to declare that your EIS meets certain standards in relation to its completeness, accuracy, quality and clarity before it is submitted to the Department, as per Division 5 of Part 8 of the EP&A Regulation. A pro forma declaration can be found in [Appendix B of the Preparing an Environmental Impact Statement Guideline](#).

### Community consultation

The Department wishes to emphasise the importance of effective and genuine community consultation. A comprehensive open and transparent community consultation engagement process must be undertaken during the preparation of the EIS. This process must ensure that the community is provided with a good understanding of what is proposed (including a description of any potential impacts) and that they are actively engaged in issues of concern to them.

### Lodging your development application (DA)

Once you submit your EIS, we will check it for completeness to confirm it addresses the requirements in Part 8 of the EP&A Regulation. **The EIS must include a comprehensive description and assessment of the likely impact of all stages, infrastructure and activities that form part of the development, as required under section 192 of the EP&A Regulation.**

To minimise delays, **please contact the Department at least two weeks before you submit your EIS** to confirm the DA fee payment arrangements.

Please note that your DA is not taken to be lodged until the DA fee has been paid.

### Information needed to determine the DA fee

Your application will need to be accompanied by an Estimated Development Cost (EDC) Report supporting the estimated development cost for your project. You must ensure that the information in the report is consistent with the information provided in your DA form.

If your project involves marinas, extractive industries or any subdivision of land, you must also ensure that your report includes a breakdown of estimated costs for any other component of your project.

### Public exhibition requirements

When you contact us regarding the DA fee arrangements, we will also confirm the consultation and public exhibition arrangements.

### Matters of National Environmental Significance

Any development likely to have a significant impact on matters of National Environmental Significance will require approval under the Commonwealth *Environment Protection and Biodiversity Conservation Act 1999* (EPBC Act). This approval is in addition to approvals required under NSW legislation.

It is your responsibility to contact the Australian Government Department of Climate Change, Energy, the Environment and Water to determine if you need approval under the EPBC Act (<https://www.dcceew.gov.au/> or 6274 1111).

If you have any questions, please contact Shaun Williams on (02) 8275 1345 or via email at [shaun.williams@planning.nsw.gov.au](mailto:shaun.williams@planning.nsw.gov.au).

Yours sincerely,

A handwritten signature in black ink, appearing to read "Joanna Bakopanos".

Joanna Bakopanos

**A/Director, Industry Assessments**

**Development Assessment & Sustainability**

as delegate for the Planning Secretary

*Attached: Planning Secretary's Environmental Assessment Requirements*